**CHAMBERS OF ADV. PRIYA SHARMA**
Advocate, High Court of Bombay & City Civil Court
Bar Council Enrollment No.: MAH/4521/2021
Chambers: 402, Lawyers Chambers, High Court Annex, Fort, Mumbai - 400001

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**SPEED POST WITH ACKNOWLEDGEMENT DUE / LEGAL NOTICE**
**Date:** 10th October 2026

**TO:**
**1. Horizon Global Ventures Ltd.**
Through its Managing Director Shri Sunil Agarwal
Plot No. 88, Bandra-Kurla Complex (BKC), Bandra East, Mumbai - 400051

**SUBJECT: STATUTORY LEGAL NOTICE UNDER SECTION 138 OF THE NEGOTIABLE INSTRUMENTS ACT, 1881 READ WITH SECTION 420 OF IPC (SECTION 318 BNS) REGARDING DISHONOUR OF CHEQUE NO. 884129 FOR RS. 28,50,000/-**

Sir / Madam,

Under instructions from, and on behalf of my client, **M/s Apex Infotech Solutions LLP**, having corporate office at Worli, Mumbai (hereinafter referred to as 'My Client'), I hereby serve upon you this formal statutory demand notice:

1. That in discharge of your legally enforceable debt and liability arising out of Enterprise Cloud Software Supply Agreement dated **20th February 2026**, you issued Cheque No. **884129** dated **15th September 2026** drawn on HDFC Bank, Fort Branch, Mumbai, for a sum of **Rs. 28,50,000/-** (Rupees Twenty-Eight Lakhs Fifty Thousand only) in favour of My Client.

2. That My Client deposited the aforesaid cheque for realization through ICICI Bank, Worli Branch on **18th September 2026**. However, the said cheque was returned unpaid and dishonoured by your bank vide Return Memo dated **22nd September 2026** with the official endorsement: **'FUNDS INSUFFICIENT'**.

3. That as per the binding doctrine affirmed by the Hon'ble Supreme Court in ***K. Bhaskaran v. Sankaran Vaidhyan Balan, (1999) 7 SCC 510*** and ***Dashrath Rupsingh Rathod v. State of Maharashtra, (2014) 9 SCC 129***, the issuance of a cheque without maintaining sufficient funds constitutes an explicit statutory offence punishable with imprisonment up to 2 years and fine up to twice the cheque amount.

**NOW THEREFORE**, I hereby call upon you to make the payment of the said amount of **Rs. 28,50,000/-** along with commercial interest @ 18% per annum within **15 (fifteen) days** of the receipt of this statutory notice, failing which My Client shall initiate criminal proceedings under Section 138 of the Negotiable Instruments Act, 1881, as well as a Commercial Summary Suit under Order XXXVII of the CPC for recovery, entirely at your risk, costs, and consequences.

Yours faithfully,

**Adv. Priya Sharma**

Advocate for the Complainant
Bar Council of Maharashtra & Goa (MAH/4521/2021)